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MOTION FOR ATTORNEY FEES

The Court tenders the following tentative decision in the matter Nancy Ruiz v. General Motors LLC, Los Angeles County Superior Court case number 25STCV01161, set for hearing on September 18, 2026. Nancy Ruiz (Plaintiff) moves for an award of attorney's fees and costs in the amount of \$31,066.56 against General Motors, LLC (Defendant). Defendant opposes the motion. Plaintiff's motion is granted in the partial amount of \$18,230.86.

A.

Legal Standard

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.) If the buyer prevails on an action under the Song-Beverly Consumer Warranty Act, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

"In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other

costs.” (Civ. Code, § 1717, subd. (a).) The court may determine fees pursuant to the section upon notice and motion by a party. The party prevailing on the contract is that “who recovered a greater relief in the action on the contract.” (Id., § 1717, subd. (b)(1).) The court may also determine that there is no prevailing party.

The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In determining whether the requested attorney’s fees are “reasonable,” the Court’s “first step involves the lodestar figure—a calculation based on the number of hours reasonably expended multiplied by the lawyer’s hourly rate. The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Gorman v. Tassajara Development Corp. (2008) 178 Cal.App.4th 44, 92.) In determining whether to adjust the lodestar figure, the Court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774 (EnPalm).)

Under Civil Code section 1794, courts must first make an initial determination of the actual time expended before ascertaining whether that amount of time and the amount thus charged are reasonable. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34.) In making such a determination, courts are to consider the complexity of the case, procedural demands, skill exhibited by counsel, and results achieved. (Ibid.) If the time expended or resulting charge are not reasonable under these circumstances, the trial court must award a lesser amount. (Ibid.) It is

the prevailing buyer's burden to show that the fees incurred were allowable, reasonably necessary to the litigation, and reasonable in amount. (Ibid.)

B. Discussion

As a threshold matter, Defendant argues that Plaintiff's motion for attorney's fees is untimely. "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court . . . must be served and filed within the time for filing a notice of appeal." (Rules of Court, rule 3.1702(b)(1).) A notice of appeal must be filed 60 days after a notice of entry of judgment is filed or 180 days after entry of judgment, whichever is earliest. (Id., rule 8.104(a)(1).) "[A] compromise agreement contemplating payment by defendant and dismissal of the action by plaintiff is the legal equivalent of a judgment in plaintiff's favor." (DeSaulles v. Community Hospital of Monterey Peninsula (2016) 62 Cal.4th 1140, 1155 [quoting Goodstein v. Bank of San Pedro (1994) 27 Cal.App.4th 899, 907].)

A voluntary dismissal is effectively a "judgment" as applied to the rule prescribing the time to appeal. (Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 649.) "Thus, 'the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).'" (Id. at p. 649.) In determining the point at which the clock begins to run, a trial court must look to when the parties first acknowledged dismissal, not when a signed minute order was entered. (Id. at p. 650.) In Hatlevig, the Court of Appeal determined that the case was considered dismissed for the purposes of Rule 3.1702 on the day the trial court entered an order of dismissal. (Id. at p. 649.) Here, Plaintiff filed a notice of settlement on December 1, 2025. That same day, the Court sent a notice setting January 30, 2026, as the day it would dismiss the present action if no request for dismissal was filed. On January 30, the Court dismissed the action and served an order of dismissal on both parties. However, this order of dismissal does not constitute a notice of entry of dismissal for the purposes of Rule 3.1702 — that is a different document. Thus, Plaintiff had 180 days after January 30 to file the present fee motion, or until July 29. This motion was filed July 27. Thus, it is timely.

Plaintiff moves for a total award of attorney's fees and costs in the amount of \$31,066.56, consisting of \$24,218.50 in fees, a lodestar bonus of \$4,843.70,

and \$2,004.36 in costs. As a prevailing party, under the Song-Beverly Act Plaintiff is entitled to attorney's fees based on actual time expended. (Civ. Code, § 1794, subd. (d).) Pursuant to a 998 offer to compromise by Defendant, Plaintiff is also entitled to costs and expenses. (Myers Decl. ¶ 73, Ex. D.)

Counsel's initial attorney's fee total is reduced by \$7,924 due to Defendant's objections.

Defendant raises many objections to the fees claimed by Plaintiff as excessive. The Court will address each in turn. First, Defendant argues that counsel is not entitled to recover a \$4,500 flat fee for work which occurred before the filing of Plaintiff's complaint. A buyer is entitled to attorney's fees "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of" a Song-Beverly Action. (Civ. Code, § 1794, subd. (d).) Attorney's fees relating to the commencement of an action would include those fees incurred prior to filing the complaint. The language of section 1794 does not preclude such fees as Defendant suggests. The Court finds \$4,500 related to pre-commencement work reasonable. Thus, the Court declines to strike these fees.

Second, Defendant challenges the propounding of standard written discovery as overbilled. Defendant argues that these tasks could not have taken as long as the billing reflects because Lemon Law matters are highly formulaic and counsel already possessed templates for all relevant motions. The Court finds that the hourly totals presented by Plaintiff are reasonable even if such templating was proven. Counsel still reasonably needed to spend time ensuring that documents were properly prepared and analyzing Defendant's own templated discovery demands to ensure that they were indeed consistent with prior filings. Indeed, Defendant's suggestion that Plaintiff should be awarded less fees because Defendant serves the same discovery in each case is not well taken — attorneys should remain diligent in each individual matter. Thus, the Court finds these fees reasonable as well, with no category appearing excessive.

Third, Defendant challenges certain tasks as clerical and administrative work not properly billed by counsel. The Supreme Court has noted that purely clerical or administrative work should not be billed at an attorney or paralegal rate. (*Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288, fn. 10.) Here, Defendant points to 1.9 hours billed for serving documents, auditing billing records, and sending routine correspondence. (Myers

Decl., Ex. A.) Such ministerial tasks are properly stricken. Accordingly, the Court reduces counsel's fee award by \$374.

Fourth, Defendant challenges hours billed by counsel to file unsuccessful oppositions to Defendant's discovery motions. Indeed, based on the outcome of the relevant motions, these opposition briefs were not necessary to the litigation. Accordingly, the Court reduces counsel's fee award by \$4,725.

Fifth, Defendant challenges the 9.6 hours counsel alleges to have spent on the present attorney's fee motion, 0.4 hours spent communicating about fees, and 5 hours spent drafting a reply. Indeed, Plaintiff filed a reply brief, but it was not timely filed as it is required 5 court days prior to the hearing. This reply brief was filed two days prior and the Court therefore did not consider it. The Court declines to award fees for a late brief which was not considered. . Counsel did compile great amounts of evidence to support its fee claims and carefully drafted the initial motion. Accordingly, the Court only reduced counsel's fee award by the amount alleged for the reply, or \$2,825.

Counsel is not entitled to a fee multiplier.

Plaintiff seeks a lodestar multiplier of 1.2. They base this on the complexities of the present case and counsel's decision to advance litigation costs. However, the present action is a highly formulaic Song-Beverly case which does not justify a positive multiplier based on complexity. Nor is counsel's decision to advance litigation costs a dispositive factor. Thus, the Court does not award a multiplier. Accordingly, after subtracting the \$7,924 properly challenged by Defendant, the Court awards Plaintiff \$16,294.50 in attorney's fees.

Plaintiff is awarded \$1,935.86 in costs.

Plaintiff also seeks reimbursement for costs and expenses incurred in the amount of \$2,004.36. (Myers Decl. ¶ 3, Ex. C.) Defendant challenges multiple claimed costs. First, it challenges \$68.50 in filing costs related to unsuccessful oppositions to motions filed by Defendant. These costs are stricken for the same reasons the Court declines to award attorney's fees related to those opposition briefs. Second, Defendant challenges Plaintiff's deposition costs. But these are allowed under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A). Accordingly, the Court only strikes \$68.50 of

Plaintiff's claimed costs.

In summary, the Court awards

Plaintiff \$16,294.50 in attorney's fees, does not award a lodestar multiplier, and awards Plaintiff \$1,935.86 in costs. Thus, Defendant is ordered to pay \$18,230.36 in attorney's fees and costs ($[\$16,294.50 \text{ in fees}] + [\$1,935.86 \text{ in costs}] = \$18,230.86$).

Conclusion:

The Court grants Plaintiff's motion in the partial amount of \$18,230.86. Fees to be paid within 30 days.